Appendix B: Architect/Engineer/Consultant Contract (State Contract Form SC-5.1)

STATE OF COLORADO
OFFICE OF THE STATE ARCHITECT
STATE BUILDINGS PROGRAM

ARCHITECT/ENGINEER AGREEMENT DESIGN/BID/BUILD (D/B/B)

(STATE FORM SC-5.1)

SAMPLE

State Agency
University of Colorado Boulder
Department I.D.
GFB
Contract I.D. Number
N/A
Project Number

___

Project Name

___

Consultant Name

___

Principal Representatives

For the State:
Name
University of Colorado Boulder
1540 30th Street
Boulder, CO 80301
Email

For Contractor:
Name
Company Name
Address Line 1
Address Line 2
City, State ZIP
Email

Designated Representative:
Micheal C. Turman
Assistant Vice Chancellor, Design & Construction
University of Colorado Boulder
1540 30th Street
Boulder, CO 80301
mike.turman@colorado.edu

ATTACHMENT 1: Architect/Engineer Agreement Terms and Conditions, SC-5.1TC

STATE OF COLORADO
OFFICE OF THE STATE ARCHITECT
STATE BUILDINGS PROGRAM

ARCHITECT/ENGINEER AGREEMENT DESIGN/BID/BUILD
(STATE FORM SC-5.1)

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SUPPLEMENTARY GENERAL *CONDITIONS*: UNIVERSITY OF COLORADO BOULDER
(Supersedes State Contract Requirements)

~~**SUPPLEMENTARY GENERAL CONDITIONS: FEDERAL PROVISIONS**~~

SIGNATURE PAGE

THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT

Each person signing this Agreement represents and warrants that the signer is duly authorized to execute this Agreement and to bind the Party authorizing such signature. In accordance with §24-30-202, C.R.S., this Contract is not valid until signed by the State Controller (or an authorized delegate) per the Fiscal Rules of the individual Institution of Higher Education

Project Number/Name: ___
Contract ID No.: N/A

CONSULTANT

By: _____

Date: _____

STATE OF COLORADO
The Regents of the University of Colorado,
A Body Corporate

By: _____

Date: _____

OFFICE OF THE STATE ARCHITECT
STATE BUILDINGS PROGRAM State Architect
(or authorized delegate)

By: _____

Date: _____

STATE CONTROLLER
Campus Controller's Office

By: _____

Effective Date: _____

SC-5.1
Rev. 09/2026

STATE OF COLORADO
OFFICE OF THE STATE ARCHITECT
STATE BUILDINGS PROGRAM

ARCHITECT/ENGINEER AGREEMENT DESIGN/BID/BUILD
(STATE FORM SC-5.1)

Department ID: GFB Contract ID #: N/A Project #:___

PARTIES. THIS AGREEMENT is entered into by and between the STATE OF COLORADO, acting by and through the *Regents of the University of Colorado, a Body Corporate* hereinafter referred to as the State or Principal Representative, and having its offices at hereinafter referred to as the Architect/Engineer.

EFFECTIVE DATE AND NOTICE OF NONLIABILITY. This Agreement shall not be effective or enforceable until it is approved and signed by the State Controller or its designee (hereinafter called the "Effective Date") but shall be effective and enforceable thereafter in accordance with its provisions. The State shall not be bound by any provision of this Contract before the Effective Date and shall have no obligation to pay Architect/Engineer for any Work performed or expense incurred before the Effective Date.

~~**Initial Expiration Date**. This Agreement will expire on _____, 20___ (the "Initial Expiration Date"), which is four (4) years after the capital construction appropriate date and includes the one (1) year warranty period. The Initial Expiration Date may be extended by the mutual agreement of the Parties in order to accommodate the Project schedule, as approved by the Principal Representative. In no event shall the Initial Expiration Date or the amended expiration date supersede or contradict the dates of Substantial Completion or Final Acceptance or prohibit the completion of any warranty Work identified or in progress at the end of the one (1) year warranty period.~~

RECITALS:

WHEREAS, the Principal Representative intends to procure hereinafter called the Project; and

WHEREAS, authority exists in the Law and Funds have been budgeted, appropriated, and otherwise made available, and a sufficient unencumbered balance thereof remains available for payment In ~~Fund Number~~, Speedtype , ~~Account Number;~~ and

WHEREAS, the State has **Appropriated** and the Principal Representative has been authorized to expend the total sum ~~of ___ Dollars ($___)~~ for this project including all professional services, construction/improvements, project contingencies, furnishings, movable equipment, reimbursable expenses and miscellaneous expenses; and

(WHEREAS, funds are available for only a portion of the services defined herein, as more fully described in the funding Condition Precedent clause in Article 3.5)

WHEREAS, the Principal Representative has established the **Fixed Limit of Construction Cost** in the amount of Dollars ($___) and

WHEREAS, the ARCHITECT/ENGINEER was selected and determined to be the most qualified, and fees negotiated in accordance with the provisions of Section 24-30-1401, C.R.S. as amended, and

ENTIRE AGREEMENT – The entire contract consists of the Architect/Engineer Agreement (SC-5.1) and Attachment 1, the Architect/Engineer Terms and Conditions (SC-5.1TC) incorporated herein by reference. The ARCHITECT/ENGINEER acknowledges having reviewed and accepted the Architect/Engineer Agreement Terms and Conditions (SC-5.1TC).

NOW, THEREFORE,

The Principal Representative and the Architect/Engineer, for the considerations hereinafter set forth, agree as follows:

1 ARTICLE 1 BASIC SERVICES OF ARCHITECT/ENGINEER

1.1 THE SERVICES

1.1.1 Professional Services

For services in connection with the design of a funded project, the Architect/Engineer promises to perform the professional services for the contemplated project as delineated in the proposal letter dated , submitted by the Architect/Engineer, which is attached hereto and made a part hereof by reference as **Exhibit A**. In addition, the Architect/Engineer promises to perform the professional services as set forth in Terms and Conditions (SC-5.1TC) 1.1.1, 1.1.2, 1.1.3, 1.1.4, 1.1.5, 1.1.6 and 1.1.7.

1.1.2 Buy Clean Colorado

If the box below is marked, this Project meets the definition of Public Project and must comply with the requirements of the Buy Clean Colorado Act, §24-92-117, C.R.S. (BCCO), and the Buy Clean Colorado Act Policy established by the State's Office of State Architect (OSA). Refer to **Exhibit C**: State Development Requirements of the *Code Compliance Policy*.

☐ _____ Principal Representative initial

1.1.2.1 The Architect/Engineer shall specify an Environmental Product Declaration (EPD) for each eligible material (specified below) within the project specifications

included in the bid documents. When specifying materials, the Architect/Engineer shall prioritize products with EPDs for the design. The Architect/Engineer will verify EPD compliance using the BCCO EPD Submittal form (EE-5.2). The Architect/Engineer must verify that the specified EPDs contain global warming potential (GWP) values that are less than or equal to the maximum GWP limits established by OSA.

During the submittal process the Architect/Engineer shall work with the Contractor to ensure that eligible materials are obtainable and can be installed. If an eligible material with a compliant EPD is unobtainable, a waiver process defined by OSA shall be utilized.

1.1.2.2 "Eligible materials" or "material categories" means materials used in the construction of a Public Project, including:

a) Asphalt and asphalt mixtures
b) Cement and concrete mixtures
c) Glass
d) Post-tension steel
e) Reinforcing steel
f) Structural steel
g) Wood structural elements

1.2 DEVELOPMENT OF THE PROJECT

1.2.5.6 Bidding Phase

The Architect/Engineer shall furnish copies of the Construction Documents as follows, subject to limitations hereinafter set forth:

a) For Bidding Documents: (1) *electronic* sets to enable distribution among prime contractors and subcontractors in accordance with the advertisement for bids.
b) For Contract Documents: The Principal Representative will require up to (1) *electronic* sets. The Contract Documents bearing the seal and the signature of the Architect/Engineer and the appropriate responsible professional Engineering Consultants are to be signed by the Contractor and the Principal Representative at the Contractor's contract signing conference. The Architect/Engineer acknowledges that prior to the contract signing conference and State Buildings Program authorizing the Notice to Proceed State Form SBP-6.26, a Letter of Compliance must be obtained from the State's Code Review Agent verifying that the contract Documents and all addenda, value engineering recommendations and all other changes to the bidding documents are in compliance with the applicable codes as adopted by State Buildings Program as indicated in **Exhibit C**.
c) For Construction: Each prime contractor shall be furnished with (1) *electronic* sets or partial sets of the Contract Documents to enable prompt prosecution of the work.

d) (0) complete sets of drawings and specifications shall be the maximum required to be furnished by the Architect/Engineer. The Principal Representative will pay for all other sets of documents or partial sets of documents required at the cost of reproduction.

1.2.7 Post Construction Phase

1.2.7.1 (As designated and defined in the Architect/Engineer's Proposal **Exhibit A**.)

2 ARTICLE 2 REIMBURSABLE EXPENSE

2.1 REIMBURSEMENT

2.1.1 Basic and Additional Services

Reimbursable expenses are in addition to the compensation for Basic and Additional Services and include actual expenditures made by the Architect/Engineer and its employees, associate Architect/Engineer, and consultants in the interest of the Project. Pay requests for reimbursable expense shall be submitted with receipts, statements, or other acceptable supporting data. The Architect/Engineer understands and agrees that a certain dollar amount as enumerated in line **H** of paragraph 3.1.1 has been established as a maximum amount to be paid for all reimbursable expenses.

2.1.2 Items for Reimbursement

The Architect/Engineer shall be reimbursed for:

a) In accordance with the provisions of paragraph 1.2.5.6 (d) of this Agreement, for all copies over (0) of the Construction Documents which are provided for the project.
b) The costs of all items furnished by the Architect/Engineer in accordance with paragraphs 5.1.1 (d) and (e) of the Architect/Engineer Agreement Terms and Conditions Design/Bid/Build (SC-5.1TC) as requested by the Principal Representative.
c) Fees of special consultants if their employment is authorized in advance by the Principal Representative for other than the required architectural, structural, mechanical, electrical and civil engineering services; landscaping, if any; space planning/interior layout; and any other services included in this Agreement.
d) Expense of data processing and photographic production techniques when used in connection with Additional Services.
e) Expense of long-distance telecommunication related to the performance of Basic Services.
f) Expense of renderings, models and mock-ups requested by the Principal Representative other than those described in the designated services.
g) Expense of mail, deliveries, mileage for local travel other than that necessary for the performance of Basic Services, and expense travel for consultants per Article 1 Basic Services of Architect/Engineer. Reimbursement of travel

expenses is to be based on reasonable and necessary travel costs within the limits of State/Federal per diem rates as published in the travel section of the State Controller's Fiscal Rules, Meal and Incidental Per Diem Rates, Appendix A1.

h) Expense of any additional insurance coverage or limits, including professional liability insurance, requested by the Principal Representative in excess of that required in Article 8 as set forth in the Terms and Conditions (SC-5.1TC).

i) Other expenses as approved in writing by the Principal Representative and State Buildings Program.

3 ARTICLE 3 BASIS OF COMPENSATION

3.1 PAYMENT

3.1.1 The Total Compensation

The total compensation for Basic Services fees (**B** through **F**), including a not-to-exceed price for Reimbursable Expenses and, if applicable, Pre-Design and Post Construction Services fees (**A** and/or **G**), shall be allocated as follows:

A.	Pre-Design Phase (if applicable)	_____
B.	Schematic Design Phase	_____
C.	Design Development Phase	_____
D.	Construction Documents Phase	_____
E.	Bidding Phase	_____
F.	Contract Administration Phase	_____
G.	Post Construction Phase (if applicable)	_____
H.	Reimbursable Expenses (Not to Exceed)	_____
	TOTAL COMPENSATION	$0.00

3.1.2 Monthly Payments

Payments to the Architect/Engineer shall be made monthly based upon Architect/Engineer's performance and progress, through a properly executed Application for Payment (SBP-7.1). Payments shall be due per § 24-30-202(24) (correct notice of amount due), within forty-five (45) days of receipt by the Principal Representative of the Applications for Payment.

3.5 CONDITION PRECEDENT

(At the time of the execution of this Agreement, there are sufficient funds budgeted and appropriated to compensate the Architect/Engineer only for performance of the services through and including Insert the phases that have been fully funded *Therefore, it shall be a Condition Precedent to the Architect/Engineer's performance of the remaining services specified in* Insert the

parts of Article 1.2 that describes the services not fully funded *and the State's liability to pay for such performance, sufficient funding must be appropriated and made available to the Principal Representative for the Project prior to ___ and, as a further Condition Precedent, a written Amendment is entered into in accordance with the State of Colorado Fiscal Rules, stating that additional funds are lawfully available for the project. If either Condition Precedent is not satisfied by ___, the Architect/Engineer's obligation to perform services for* Insert the scope pf work or phases that will be completed as part of the Condition Precedent *and the State's obligation to pay for such service is discharged without liability to each other. If funding is eventually made available after___, the Architect/Engineer has no right to perform services under* Insert the parts of Article 1.2 that describes the services not fully funded *of this Agreement and the state has no right to require the Architect/Engineer to perform the said services.)*

12 ARTICLE 12 MISCELLANEOUS PROVISIONS

12.26 DESIGNATED REPRESENTATIVES

The Principal Representative and the Architect/Engineer authorize the individuals noted on the cover page to act on their behalf as Designated Representatives and points of contact as described in paragraphs 1.1.4 and 5.1.1(b):

Notice to Principal Representative:

Project Manager
University of Colorado Boulder
Email

With copies to State Buildings Program (or Delegate:
Micheal C. Turman
Assistant Vice Chancellor, Design & Construction
University of Colorado Boulder
mike.turman@colorado.edu

Notice to Architect/Engineer
Name
Title
Company
Email